

Form No.HC.JD/C-121  
ORDER SHEET

IN THE LAHORE HIGH COURT,  
RAWALPINDI BENCH, RAWALPINDI  
JUDICIAL DEPARTMENT

Crl. Org. No.17-w of 2024

Sheikh Allah Bakhsh                      **Versus**                      Additional District Judge, etc.

| Sr. No.<br>of Order/<br>Proceeding | Date of<br>Order/<br>Proceeding | Order with Signature of Judge, and that of parties or<br>counsel, where necessary |
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**07.05.2025**      Mr. Muhammad Kokab Iqbal, ASC for the Petitioner.  
Mr. Tanvir Iqbal Khan, ASC for the Respondents.

The grievance agitated through this contempt petition under Article 204 of the Constitution of Islamic Republic of Pakistan, 1973 (the “*Constitution*”) is that the Respondents have not complied with orders dated 11.12.2023 passed in W.P.No.2998 of 2022 whereby status quo qua the property in dispute was ordered to be maintained.

2.      Learned counsel for the Petitioner submitted that the Respondents No.2 to 5 have committed violation of the status quo orders of this Court. He submitted that the Petitioner is in possession of the suit property but the Respondents while breaking its boundary wall started construction over there. He pleads that the Respondents be proceeded and punished accordingly for disobeying the aforesaid orders.

3.      Conversely, learned counsel for the Respondents have objected to the maintainability of this Petition on the basis of reply of the Respondents No.2 and 3 stating that they did not disobey any order of this Court. He added that the Petitioner filed this Petition with malafide intention because he is not in possession of the suit land but succeeded to obtain interim

relief. He submitted that pursuant to the order dated 09.02.2024, Faisal Khan, SI/SHO concerned visited the place and got recorded his statement on 27.02.2024, that he did not see any new construction over the disputed land. He stated that the Respondents No.2 and 3 are in lawful possession of the suit land and the Petitioner has no concern whatsoever with it.

4. Heard. Record perused.

5. In order to proceed in the contempt proceedings under Article 204 of the Constitution for disobeying the orders of this Court, it is necessary to go through the history of the case. On 09.02.2024, notices were issued to the Respondents to file reply regarding violation of status quo orders dated 11.12.2023 disobeyed on 14.12.2023 and 24.12.2023. It is noted that Petitioner's civil suit is still pending which was instituted on 31.03.2021 and status quo order was granted on 31.03.2021 but plaint was rejected on 30.03.2022. Against which an appeal was filed on 01.04.2022 and again status quo was granted on the said date. However, the said appeal was decided on 27.04.2022 remanding the case to trial Court for its decision afresh. In post remand proceedings, application for temporary injunction was dismissed on 23.07.2022. The said order was then appealed in which status quo was granted on 26.07.2022 but ultimately, the appeal was dismissed on 04.10.2022, which order was challenged in writ petition wherein this Court granted status quo orders, referred to above.

6. Pertinently, a contemnor cannot be punished on the ground of contempt summarily, since in the judgment reported as "Saadat Khialy, Staff Reporter ("Kohistan" Daily) and others versus The State and another" (PLD 1962

**Supreme Court 457)** the Supreme Court of Pakistan has held that “*contempt of Court proceedings were sui generis in nature partaking of some of the elements of both civil and criminal proceedings but really constituting neither, that there was no fixed formula for contempt proceedings and that technical accuracies were not required, nor were we bound by the provisions of the Code of Criminal Procedure or by the technicalities of ordinary criminal proceedings; but, nevertheless being Courts of justice, we would normally follow the fundamental rules for the ascertainment of the truth by giving the fullest opportunity to the person accused of defending himself and of putting forward his case with as much, if not, more fairness than we would in an ordinary trial before us*”. Further it was held in case titled “G. S. Gideon, Advocate versus The State” (**PLD 1963 Supreme Court 1**) that “*the jurisdiction of Courts of Record or superior Courts to punish for contempt by the summary process of attachment or committal is a special jurisdiction, which is inherent in all such Courts as an essential concomitant of their power to preserve order in judicial proceedings and to maintain the authority of law. There is no fixed formula for contempt proceedings and technical accuracies are not required nor are the superior Courts bound by the provisions of the Code of Criminal Procedure or by the technicalities of ordinary criminal proceedings. All that is necessary is that the fundamental rules for the ascertainment of truth should be followed and the contemnor should be given the fullest opportunity of defending himself*”. In “MUHAMMAD IBRAHIM and others versus SYED AHMAD and others” (**PLD 2000 Supreme Court 71**) it was further held that “*admittedly, the Code of Civil Procedure regulates civil*

*proceedings but the contempt proceedings are neither civil nor criminal and it partakes both. The power exercised by the Court in contempt proceedings is in the nature of special jurisdiction. Section 7 of the Act lays down a procedure for Supreme Court and High Court. Where it is necessary in the interest of effective administration of justice to proceed against a contemnor, he may be proceeded against by setting forth the substance of the charge against him and the ground on which he is charged with contempt of Court and calling upon him to show cause why he should not be punished, after holding such enquiry and taking such evidence as the Court deems necessary. A bare perusal of section 7 of the Act indicates that section 12(2), C.P.C. is not applicable to proceedings initiated under the Act Refer clause (3) of Article 204 of the Constitution which provides that the exercise of the power conferred on a Court may be regulated by law and subject' to law by rules made by the Court. The superior Courts are not bound by the provisions of the Civil Procedure Code or the Code of Criminal Procedure or by the technicalities of ordinary criminal proceedings or civil proceedings in dealing with a contempt matter”.*

7. The entire case of the Petitioner rests on the allegation that the Respondents violated the status quo order dated 11.12.2023; however, the material available on record does not support this allegation. The Respondents No.2 and 3 have submitted their replies wherein they have denied any violation and claimed that they are in lawful possession of the suit property. The record further shows that` in compliance with the directions of this Court, the concerned SHO visited the site and recorded his statement on 27.02.2024, stating that no fresh construction was found at

the site in question. It also appears that the matter of possession is seriously disputed between the parties and is sub judice before the civil court. Contempt proceedings are of a special nature and cannot be initiated or continued unless the disobedience of the order is established to be clear, deliberate, and willful. It is now well-settled that although such proceedings are not bound by technical requirements of the Code of Civil Procedure or Code of Criminal Procedure, yet the principles of natural justice and fair opportunity must be followed in letter and spirit. The power to punish for contempt is an extraordinary one and must be exercised with circumspection and only in those cases where the authority and dignity of the Court is undermined through a contumacious act. Mere allegations, assumptions, or technical infractions without a conscious effort to defy the Court's command are not sufficient to attract penal consequences.

8. In the present facts and circumstances, since the Petitioner has failed to establish that the Respondents have willfully disobeyed the order(s) of this Court, so no case for initiating contempt proceedings against the Respondents is made out. This contempt petition is therefore **dismissed** being devoid of any force.

**(JAWAD HASSAN)**  
**JUDGE**